

Arvind v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 7 December 2019 · Writ-C No. 40269 of 2019 · Writ-C No. 40269 of 2019 · **Writ disposed of; Executive Engineer directed to consider objections and pass a speaking final order; coercive recovery stayed for a limited period; Section 127 appeal preserved against that order.**

HEADNOTE

On a challenge to a recovery citation for electricity dues alleged to rest on an ex parte assessment, the High Court declined to quash the citation. It directed the consumer to file objections before the Executive Engineer, required a speaking final order, stayed coercive action for a limited period, and preserved the appeal under Section 127 of the Electricity Act, 2003 against that final order.

FACTUAL SUMMARY

The petitioner, Arvind, filed a writ petition challenging a recovery citation dated 13 November 2019 for Rs 3,44,999 as electricity dues. He sought quashing of the citation and a restraint on the recovery officer from proceeding on what he described as an ex parte assessment by the Executive Engineer. He alleged coercive action without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then statutory appeal

HOLDING

A consumer challenging a recovery citation for electricity dues on the ground of an ex parte assessment without hearing is not entitled to have the citation quashed in writ. The Court will direct him to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order within a stipulated time, stay coercive recovery for a limited period subject to default, and leave any grievance against that final order to the statutory appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections, the Court left any remaining grievance to the statutory appeal under Section 127 rather than deciding the recovery citation on merits. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Court recorded that if the petitioner is aggrieved by the final order, it will be open to file an appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF 13.11.2019 OR THE ASSESSMENT OF RS 3,44,999 WAS ILLEGAL ON MERITS

The Court did not quash the citation or examine the quantum; it directed a speaking final order on objections. ¶ 1

NOT DECIDED — WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS BREACHED IN THE ASSESSMENT OR RECOVERY

The petitioner alleged non-compliance with the Supply Code; the Court did not construe any clause. ¶ 1

